



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Charles Bloom, AICP, Planning and Development Director

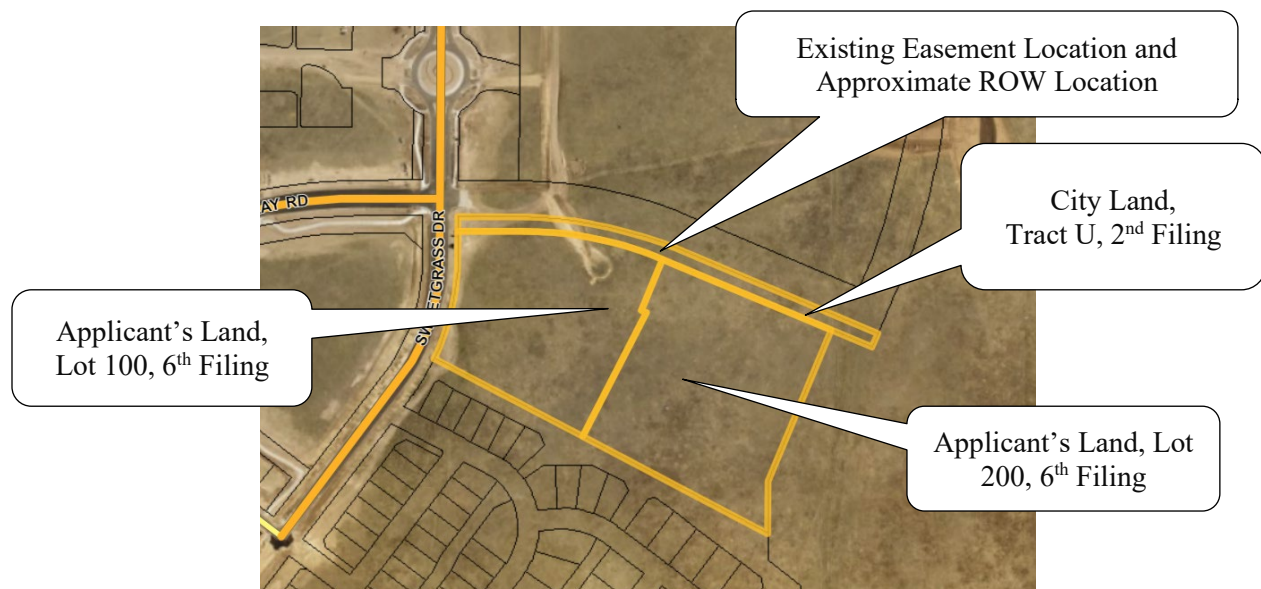
Subject: A Memorandum of Understanding (MOU) between the City of Cheyenne and Doran Lummis to authorize filing of platting application(s) for City-owned lands for the purpose of access and future development.

Date: January 24, 2022

Background:

The item for consideration is a memorandum of understanding (MOU) between the City and Doran Lummis to allow an application to replat City-owned land within the Sweetgrass 2nd Filing Plat in association with a replat of Sweetgrass 6th Filing. Pursuant to chapter 2.1 of the Unified Development Code, applications for plats may only be initiated by a landowner or authorized agent. This MOU authorizes application submittal and review. This MOU shall not be considered as the City granting approval of any subsequent development application(s) involving this land. Development of any right-of-way plated will be the responsibility of the applicant or their assignee, not the City.

Under the MOU, a portion of the City property may be converted to right-of-way for access purposes. The right-of-way location is anticipated to replace the utility, access, and construction easement across Tract U that the Governing Body approved on July 14, 2021. That easement has not been recorded with the County Clerk at this time. Final alignments will be subject to review and approval through the platting process.



The proposed Governing Body review schedule is as follows:

- Introduction and Referral January 24, 2022, 2021
- Public Services Committee February 1, 2022
- Final consideration February 7, 2022

Attachments:

1. Memorandum of Understanding

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (MOU) is by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming (City), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Doran Lummis, an individual, of 1825 Campstool Road, Cheyenne, WY 82007 (Applicant). The City and Applicant are collectively referred to as "Party" or "Parties." This MOU shall become effective upon the date of the last signature affixed hereto.

WHEREAS, the Applicant intends to replat Lots 100 and 200, Block 15 of Sweetgrass 6th Filing and Public Greenway Tract U of Sweetgrass 2nd Filing; and

WHEREAS, the City is owner of Public Greenway Tract U of Sweetgrass 2nd Filing; and

WHEREAS, the intention of City involvement in the plat is to plat a right-of-way for access to replatted Lots 100 and 200, Block 15 of Sweetgrass 6th Filing; and

WHEREAS, pursuant to chapter 2.1 of the Unified Development Code, applications for a division of land may be initiated by the property owner(s) of all property subject to the application, or the property owner(s)'s authorized agent; and

WHEREAS, City authorization to allow the Applicant to file an application for a division of land involving City-owned lands is required pursuant to chapter 2.1 of the Unified Development Code; and

WHEREAS, City authorization allows the Applicant to plat City-owned lands for the purpose of access and future development; and

WHEREAS, this agreement shall not be construed as the City granting approval of the development application(s) authorized herein.

NOW, THEREFORE, the Parties agree as follows:

1. Recitals Incorporated. The foregoing recitals are incorporated herein by reference into this Agreement.
2. Purpose. The purpose of this MOU is to allow replatting of All of Lot 1 & 2, Block 1, inclusive, P.A.S. Subdivision, First Filing and platting of currently unplatted City land immediately east of Cheyenne Ice & Events Center Second Filing plat;
3. Term. This MOU shall commence on the last date executed by the duly authorized representatives of the Parties to this MOU and shall remain in full force and effect until February 14, 2024, for a period of two (2) years.
4. Payments. Neither Party shall have any obligation to make any payment of any kind to the other Party under this MOU.
5. Responsibilities of Applicant. Applicant shall:
 - a. File necessary division of land applications and pay required fees in accordance with City standards.
 - b. May plat one street right-of-way through City-owned lands for the purposes of establishment of right-of-way. Right-of-way widths and locations shall be at the discretion of the City.
 - d. Be responsible for all public improvements and surveying related to division of land applications.
6. Responsibilities of the City. The City shall:
 - a. (Mayor) Sign necessary authorizations for the Applicant to proceed with platting applications related to the lands mentioned herein without delay.

b. Assist the Applicant with provision of necessary information regarding the platting of City-owned land.

c. Allow the Applicant and his/her agents access to City owned lands for carrying out necessary actions relating to applications authorized per this agreement.

7. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed and signed by all Parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Indemnification. Applicant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Licensee's duties, including

death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) Applicant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by Applicant, or its employees, in the performance of this Agreement. Applicant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this

MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

i. Force Majeure. The performance of this MOU by the Parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and

enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.

l. Termination. Any Party may terminate its participation in this MOU, with or without cause, by providing thirty (30) days written notice to the other Party.

m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

8. Signatures. In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

City of Cheyenne

Date
(SEAL)
Attest:

By:

Patrick Collins, Mayor

Kristina F. Jones, City Clerk

Applicant

Date

By:

Doran Lummis